

MEMORANDUM

TO: MCLE Attendees, Office of the County Counsel, County of Sonoma
FROM: John A. Kelly
DATE: July 16, 2026
RE: Case Study: AI in a Traffic Court Matter (Four Demonstrations at the Smallest Scale)

MEMORANDUM

The other written materials for this program show AI applied to a large research problem: a comparative survey of civil local rules across all 58 California counties. This memorandum shows the same tools applied at the opposite end of the scale, a single red light camera citation, the smallest contested matter in the California court system. The matter is my own, so there is no client confidentiality concern in presenting it, and it has concluded: the court entered a not-guilty decision after trial by written declaration on June 30, 2026, with a full refund of bail. The underlying court documents are attached as Exhibits A through C.

The case study is organized as four demonstrations, and each one uses a specific resource or prompt from this program's written materials. The point is not the ticket. It is that the grounding discipline the program teaches is the same at every scale, and that a matter most attorneys would resolve by writing a check can be defended thoroughly in a few hours of attorney time when each step is grounded in something a machine can check.

I. THE MATTER

The matter traces to a bug that climbed into the air conditioning drain system of my daughter's car and died there, a small decision with a repair bill attached. On September 24, 2025, I drove the car home to Sonoma from the shop in Napa County. At the corner of Lincoln and Soscol I made a right turn on a red light (after stopping, I maintained, and the court ultimately agreed), and an automated camera operated for the County of Napa recorded the event.

The camera photographs the driver, and its photograph shows a man behind the wheel. The citation nonetheless went to the registered owner of the vehicle: my former spouse, who is not a man. The citation, reproduced below in redacted form, describes the driver in its Driver Information box as female, blond, and five foot seven, details copied from the registered owner's DMV record and printed a few inches from the photograph of the man driving. The reverse of the citation carries an Affidavit of Non-Liability whose form asks for the name, license number, and address of the actual driver. The registered owner checked the statute before filling anything in, and it does not require what the form asks. Vehicle Code section 40520 obligates a rental or leasing company to identify its renter (subd. (b)); for a private owner, subdivision (c) merely permits the agency to establish a procedure for owners who choose to identify the driver. She executed the affidavit stating she

was not the driver, named no one, and mailed it in.

CITY OF NAPA Automated Enforcement Traffic Violation

For more information, digital images and video viewing please go to:
<https://usview.cite-web.com>
Citation number: NP1014371 Pin Number: 242155636

GIANNA GHILARUCCI KELLY
19001 JUNIPERO SERRA DR
SONOMA, CA 95476
NP1014371

Citation No. NP1014371

CITY OF NAPA POLICE DEPARTMENT
NOTICE TO APPEAR Automated Traffic Enforcement

Date of Violation 09/24/2025	Time 14:38	Day of Week Wednesday	Case No.
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Name (First, Middle, Last)
GIANNA GHILARUCCI KELLY

Address
[REDACTED]

City
SONOMA

State
CA

Zip Code
95476

Driver Lic. No.
[REDACTED]

State
CA

Class
C

Commercial
[REDACTED]

Age
[REDACTED]

Birth Date
[REDACTED]

Sex
F

Hair
BLOND

Eyes
BLU

Height
5-07

Weight
135

Race
[REDACTED]

Veh. Lic. No. or VIN
8BHN477

State
CA

Yr. of Veh.
2018

Make
HYUN

Model
SD

Body Style
SD

Color
LIGHT

Registered Owner or Lessee
GIANNA GHILARUCCI KELLY

Address
[REDACTED]

City
SONOMA

State
CA

Zip Code
95476

Code and Section
CVC 21453B

Description
Right on red without stopping

Location of Violation at
Lincoln Ave @ Soscol Ave - EB

Violation was not committed in my presence. The above is declared on information and belief and is based on photographic evidence.

I declare under penalty of perjury under the laws of the State of California the foregoing is true and correct.

Date Issued
10/02/2025

Declared
David Gonzalez

ID No
230

YOU MUST RESPOND TO THE COURT ON OR BEFORE:

WHEN: DATE: Nov 17, 2025

WHAT TO DO: FOLLOW THE INSTRUCTIONS ON THE REVERSE

WHERE: Napa County Superior Court,
1111 Third Street
Napa, CA 94559

Phone: 707-299-1160

Justice Council of California Form
Rev. 09-28-15 (Rev. Com. § 49016)

SEE REVERSE
TR-115

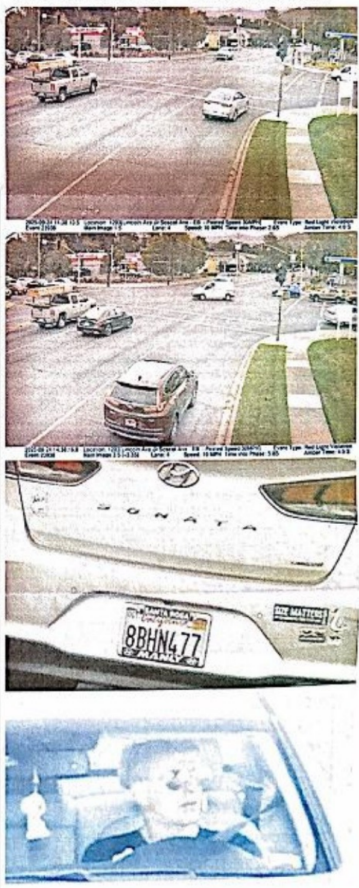


Figure 1: Citation NP1014371, as mailed to the registered owner (redacted).

On March 9, 2026, 166 days after the violation, a second citation issued, this one to me, for a violation of Vehicle Code section 21453, subdivision (b), failure to stop before a right turn at a steady red signal. No document states the basis on which the agency concluded I was the driver, a gap that returns in Demonstration Four. The accompanying instruction sheet says a citation reaches its recipient in one of two ways, “Either you are the registered owner or an affidavit of non-liability identifying you as the driver was submitted,” and neither was true of me. The second citation also carries a different number than the first (NQ1014371, where the original was NP1014371). A Final Notice followed (Exhibit A), demanding \$301 in bail without stating the date of the violation.

The strategic question was the standard one: pay, appear, or contest by trial by written declaration under Vehicle Code section 40902. What follows is how the tools answered it.

II. DEMONSTRATION ONE: THE ENTIRE VEHICLE CODE, LOCALLY, IN THE HARNESS

The first resource in the program materials is the California codes repository, the complete text of all twenty-nine California codes in machine-readable form, synced nightly from the Legislature's own bulk data:

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https://github.com/johnakelly-yahoo-com/california-codes
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The Vehicle Code from that repository was placed in the working folder, and the model was directed to answer only from it, using the document-grounded prompt from the Curated Prompts memorandum:

```
Use only the attached [document, code section, or file] to answer. Quote the exact language you rely on, with its location (section, page, or line). If the attached material does not contain the answer, say "Not found in the provided source." Do not use outside knowledge or training data.
```

Grounding mattered immediately, for a reason worth pausing on. Senate Bill 720 (Stats. 2025, ch. 782) added Vehicle Code section 21455.9 effective January 1, 2026, creating a new civil penalty framework for automated enforcement with a \$100 cap on first offenses and no DMV points. A model relying on its training data would likely have missed or garbled a statute that new. Working from the current statutory text, the analysis correctly distinguished the two frameworks, confirmed that this citation, with \$301 bail and Superior Court processing, was proceeding under the older court-based framework of section 21455.5, and then extracted every operational requirement that framework imposes on the enforcing agency: the 15-day mailing rule (§ 40518, subd. (a)), signage within 200 feet (§ 21455.5, subd. (a)(1)), right-turn screening guidelines (§ 21455.5, subd. (c)(1)), calibration and inspection (§ 21455.5, subd. (c)(2)), yellow-light timing per the California MUTCD (§ 21455.7), individual law enforcement review of each citation (§ 21455.5, subd. (c)(2)(F)), the pre-contract public hearing (§ 21455.6, subd. (a)), and the ban on per-citation vendor compensation (§ 21455.5, subd. (h)(1)). Every one of those became a challenge ground in the strategy memorandum, and each quoted the statutory language with its location, because the prompt required it.

The right-turn screening requirement deserves a special mention in this case. The Legislature specifically directed agencies to develop screening guidelines that account for the lower risk of right turns on red, precisely because camera systems mass-produce marginal right-turn citations. A screening process that mails a photograph of a man to a woman and lets the case proceed from there invites a certain skepticism about how much screening is occurring, and the memorandum said so in more diplomatic terms.

III. DEMONSTRATION TWO: NAPA COUNTY PROCEDURE FROM THE LOCAL RULES REPOSITORY

The second resource is the county local rules repository, all fifty-eight counties, in a structure suited to AI retrieval:

```
https://github.com/johnakelly-yahoo-com/california-local-rules
```

The citation was a Napa County matter, and I practice in Sonoma, where our familiarity with Napa's procedures is roughly proportional to our enthusiasm for them. Rather than working from assumptions about how the neighboring court processes traffic matters, Napa County's local rules were pulled from the repository and loaded as a source, with the same document-grounded prompt directing the model to answer only from them. That grounding, combined with the court's own posted traffic procedures, framed the practical questions that decide whether a written-declaration defense actually gets filed correctly: how the court takes traffic filings, what had to accompany the request (the \$301 bail deposit), and where the papers physically go, which in this case meant the traffic clerk's window at 1111 Third Street in Napa. The signed request (part of Exhibit B) was delivered through an e-filing concierge service with AI-drafted clerk instructions, which is a convenience worth one sentence; the local-rules grounding that made the filing correct is the demonstration.

IV. DEMONSTRATION THREE: AUTHENTICATING THE AUTHORITIES IN WESTLAW

The memoranda in the defense file cited case law as well as statutes, principally *People v. Goldsmith* (2014) 59 Cal.4th 258, the California Supreme Court's decision on the admissibility of automated enforcement photographs. Citations in AI-assisted work product are verified, not trusted, and the Curated Prompts memorandum supplies the workflow. The citation-checking prompt extracts every case cited in a document and builds a Westlaw citation-field search:

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CI("59 Cal.4th 258")
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The companion statute prompt builds the parallel search for the statutory citations, semicolon-separated for the annotated California database:

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CA VEH § 21453; CA VEH § 21455.5; CA VEH § 21455.7; CA VEH § 40518;  
CA VEH § 40520; CA VEH § 40902
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The searches were run in a Westlaw session, the result counts were checked against the number of authorities cited, and the opinions and code sections were downloaded as single-column PDFs. The downloaded text then served two purposes. It authenticated what the memoranda cited: each citation matched the official reporter citation, and each pinpoint supported its proposition. And it became part of the closed corpus the drafts were checked against. This is the step that replaces "the AI said so" with "the authority is in the file."

V. DEMONSTRATION FOUR: GROUNDING IN THE CHARGING DOCUMENTS

The final demonstration is the one that won the case, and it is the discipline most directly transferable to daily practice: grounding the AI in the actual documents from the court. The defense file as it then existed, consisting of the Final Notice (Exhibit A), the filed request for trial by written declaration, and the court-prepared TR-205 form, was loaded as the only source, and the model was asked what the file established and what it did not, against the statutory checklist from Demon-

stration One.

The answer was: remarkably little. No document in the file stated the date of the underlying violation. The People were demanding \$301 for an event they declined to place in time, which made compliance with the 15-day mailing requirement unverifiable by design. The Final Notice provided only the court's own contact information and invited questions to the court's own phone number, despite section 40518, subdivision (b)(2), requiring the issuing agency's contact information and a description of how to view and discuss the evidence with that agency; the notice never identified the issuing agency at all. Nothing in the file supplied the basis on which the registered owner's "I was not driving" became "the driver was John Kelly," the leap described in Part I. And the file managed to render the defendant under three different names: "John Kelly" on the charging documents, "JOHN A. KELLY" on the pleading, and "John Alexander Kelly" on the court's own trial form, a full legal name that appeared nowhere in anything previously filed or served. Each finding was tied to a specific document and a specific statutory requirement, quoted language with location, which is what makes this kind of AI review verifiable rather than speculative. The findings went into the Declaration of Facts filed with the TR-205 (Exhibit B), along with a Public Records Act request and a section 21455.5, subdivision (g), evidence inspection demand generated the same way.

A postscript: the two citations were located only after the decision, while these materials were being prepared, and they confirmed what the review had flagged. The violation date the Final Notice omitted was September 24, 2025. The original citation issued October 2, 2025, within the 15-day window of section 40518, subdivision (a); the citation to me issued March 9, 2026, 166 days after the violation, to a person no affidavit had named. A review grounded in an incomplete file still asked the right questions, because the statute, not the model's memory, supplied the checklist.

VI. THE OUTCOME

On June 30, 2026, the Napa Superior Court found the defendant not guilty on the written declarations and ordered the bail refunded in full (Exhibit C). A defense of a \$301 citation would have been economically irrational at ordinary drafting speed; grounded, it took a few hours of attorney time, and nothing went out unverified. The People's exhibits were returned to the Napa Police Department, where the photograph of a man may yet be reunited with its file on a woman.

VII. THE GOVERNMENT-SIDE FLIP

For this audience, the case study has a second reading, and it is the serious one. Every defense ground in Demonstration One is a compliance obligation of the public agency operating the system: the signage, the warning period, the safety finding, the screening guidelines, the calibration records, the officer review, the hearing, the vendor contract terms. Everything that made this citation vulnerable, from the missing violation date to the missing agency contact information to the 166-day reissuance to a driver no affidavit identified, is a paper-trail failure that a county's own lawyers could have caught first. An office advising an agency that operates an automated enforcement program, or any program built on a statute with enumerated operational requirements, can run exactly the workflow described here from the other direction: ground the AI in the governing statute from the codes repository, have it build the compliance checklist with quoted language

and locations, and audit the client agency's program against it before a defendant does. The same discipline that makes AI safe for a defendant's research makes it useful for preventive compliance review.

EXHIBITS

- Exhibit A. Final Notice, Superior Court of California, County of Napa (the demand as received, with no violation date)
- Exhibit B. TR-205 Filing Packet: Request for Trial by Written Declaration and Declaration of Facts (as filed)
- Exhibit C. TR-215 Decision and Notice of Decision: Not Guilty, June 30, 2026 (bail refunded in full)



Superior Court of California
County of Napa
1111 THIRD STREET
NAPA CA 94559-3001

C.9011

RETURN SERVICE REQUESTED

FINAL NOTICE

Please disregard this notice if you have already resolved your ticket.

PERSONAL AND CONFIDENTIAL

219

John Kelly
617 BROADWAY UNIT 1637
SONOMA CA 95476-2419



Superior Court of California, County of Napa
Criminal Courthouse
1111 Third Street
Napa, CA 94559-3001
(707) 299-1160
www.napa.courts.ca.gov

Case # 26TR005843

Citation #: NQ1014371

A ticket was issued to you for the following charges and you have failed to pay or appear by 4/24/2026:

Charge	Charge Description
VC21453(B)	RED SIGNAL - STOP BEFORE TURN

The information on the front and back of this notice contains the options available to resolve your ticket. Please contact the court if you have any questions. **(707) 299-1160**

Pay Your Ticket:

This is your final notice to pay the full amount of \$301.00 by 5/21/2026.

Payments can be made:

- Online by visiting www.napa.courts.ca.gov
- By mail 1111 Third Street, Napa, CA 94559-3001 (cash not accepted by mail)
- In person Monday through Friday 8:00AM to 4:00PM (excluding holidays)



Case # 26TR005843
Case Name John Kelly

Citation #: NQ1014371

Requesting a Trial:

If you would like to request a trial to contest your ticket, choose one of the following and return this notice and payment to the court by mail or in person:

☐ **TRIAL BY WRITTEN DECLARATION (Trial in Writing)**

I wish to request a Trial by Written Declaration and I am enclosing the full amount of \$301.00 by 5/21/2026. I understand that I will receive a packet from the court with further instructions that must be filled out and returned to the court by the date indicated in the packet.

X _____ Date: _____ Phone #: _____
Signature - I wish to request a Trial by Written Declaration.

☐ **IN-PERSON COURT TRIAL**

I wish to request an in-person court trial and I am enclosing the full amount of \$301.00 to the court by 5/21/2026. I understand that once my request is processed, I will receive a notice from the court of the date and time to appear in court. The issuing officer will also be notified. I acknowledge that the court trial date may be set beyond 45 days from the date of my signature below. Upon completion of the trial, depending on the outcome, my payment will either be refunded or applied to the fine.

X _____ Date: _____ Phone #: _____
Signature - I plead not guilty, waive time, and request a court trial.

IN-PERSON COURT TRIAL WITHOUT POSTING BAIL (CA Rule of Court 4.105)

If you wish to request an in-person court trial without submitting payment in advance, contact the court by 5/21/2026.

If you cannot afford to pay the required fines and fees in full, you may access the online system at Mycitations.courts.ca.gov to:	<u>Before Using the MyCitations Tool</u> You must contact the Court directly at 707-299-1160 if you:
▪ Request a reduction to your ticket	▪ Wish to contest the citation
▪ Request a payment plan	▪ Wish to attend traffic school
▪ Request Community Service	▪ Have an offense that is a misdemeanor violation
▪ Request more time to pay your ticket	▪ Have proof of correction and would like a dismissal or reduction of the charges

FAILURE TO ACT ON OR BEFORE 5/21/2026, OR FAILING TO APPEAR FOR A SCHEDULED COURT DATE, MAY RESULT IN ONE OR MORE OF THE FOLLOWING:

1. Referral to a collection agency and up to a \$100.00 civil assessment fee imposed (Penal Code 1214.1 and Penal Code 853.7)
2. A civil judgment may be enforced by garnishing wages, intercepting tax refunds, placing property liens, or through other potential income sources as described in Penal Code 1463.007.

To pay by credit card, you can pay online at www.napa.courts.ca.gov or complete the following information and return this notice to:

1111 Third Street, Napa, CA 94559-3001

Credit Card number: _____

3 Digit code (location on back of card) _____ Expiration Date _____

Cardholder's Name (as printed on the card): _____

Cardholder's Address (billing address): _____

Telephone Number: _____ Fine Amount \$ _____

Today's Date: _____ Signature: _____



NAME OF COURT: Napa Superior Court STREET ADDRESS: 1111 Third Street MAILING ADDRESS: 1111 Third Street CITY AND ZIP CODE: Napa, CA 94559 BRANCH NAME:	FOR COURT USE ONLY
PEOPLE OF THE STATE OF CALIFORNIA VS. DEFENDANT: John A. Kelly	
REQUEST FOR TRIAL BY WRITTEN DECLARATION (Vehicle Code, § 40902)	
TO BE FILLED OUT BY COURT CLERK	CITATION NUMBER: NQ1014371
A. DUE DATE (for receipt of this form and any unpaid bail) (<i>specify</i>):	CASE NUMBER: 26TR005843

B. Bail amount required: \$

C. Bail amount already deposited by defendant: \$

D. Date mailed or delivered by clerk:

E. Mail or deliver completed form, evidence, and mail to the Clerk of the (*specify*): Court at (*mailing address*):

REQUEST FOR TRIAL

- I have reviewed the *Instructions to Defendant (Trial by Written Declaration)* (form TR-200).
- I request to have a trial by written declaration.
- The facts contained in the Declaration of Facts on the reverse are personally known to me and are true and correct.
- I know that I have the right not to be compelled to be a witness against myself. I understand and agree that by making any statement, I am giving up and waiving that right and privilege.
- EVIDENCE The following evidence supports my case and includes everything I want the court to consider in deciding my case:

a. ☐ photographs (*specify total number*):

b. ☐ medical record

c. ☐ registration documents

d. ☐ inspection certificate

e. ☐ diagram

f. ☐ car repair receipt

g. ☐ insurance documents

h. ☒ other (*specify*):

Written declaration of facts
in support of trial by written
declaration (attached).

(Declaration continued on reverse)

PEOPLE v. DEFENDANT (Name):

CASE NUMBER:

John A. Kelly

26TR005843

6. DECLARATION OF FACTS (Type or print only. State what happened and explain all the items of evidence you checked in item 5 on the reverse and tell how they support your case. You may add additional pages.)

(Name): John A. Kelly

(Current mailing address):

617 Broadway Unit 1637, Sonoma, CA 95476

STATEMENT OF FACTS (begin here):

Please see the attached Declaration of Facts in Support of Trial by Written Declaration, signed under penalty of perjury and incorporated herein by reference.

7. Number of pages attached: 8

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: June 22, 2026

John A. Kelly

(TYPE OR PRINT NAME)



(SIGNATURE)

1 JOHN A. KELLY, ESQ. (SBN 225961)
617 BROADWAY UNIT 1637
2 SONOMA, CA 95476
TEL: (707) 935-6100
3 FAX: (707) 935-6181
EML: JOHN@LAW-KELLY.COM
4

Defendant In Propria Persona.
5
6
7

8 SUPERIOR COURT OF THE STATE OF CALIFORNIA
9 COUNTY OF NAPA
10

11 THE PEOPLE OF THE STATE
OF CALIFORNIA,

12 Plaintiff,

13 v.

14 JOHN A. KELLY,

15 Defendant.
16

Case No.: 26TR005843

DECLARATION OF FACTS IN
SUPPORT OF TRIAL BY
WRITTEN DECLARATION
(Veh. Code, § 40902)

17
18 I, John A. Kelly, declare as follows:
19

20 **I. INTRODUCTION AND PLEA**
21

22 I am the defendant in this matter and I appear in propria
23 persona. I make this declaration in support of my trial by
24 written declaration under Vehicle Code section 40902, on the
25 charge stated in Citation No. NQ1014371, which alleges a
26 violation of Vehicle Code section 21453, subdivision (b) (failure
27 to stop before a right turn on a steady red signal). I plead not
28 guilty. The facts stated below are personally known to me and are

1 true and correct, and I would so testify if called as a witness.
2 On May 20, 2026, I deposited bail in the full amount of \$301.00
3 with the court when I filed my Request for Trial by Written
4 Declaration. If I am found not guilty or the charge is dismissed,
5 that bail must be refunded. (Veh. Code, § 40902, subd. (b).)

6
7 **II. STATEMENT OF FACTS**
8

9 The citation arises from an automated red light enforcement
10 system operated by the Napa Police Department for the City of
11 Napa. On the date in question I was driving a vehicle registered
12 to Gianna Ghilarducci Kelly. I was returning that vehicle to her
13 after it had been serviced at a repair shop. The vehicle was not
14 my own, I was not familiar with it, and I was not familiar with
15 the intersection.

16
17 I came to a complete stop before turning right. I stopped,
18 checked for cross traffic and pedestrians, and only then
19 completed a right turn on the red signal, which is permitted
20 under Vehicle Code section 21453, subdivision (b). Automated
21 systems can register a careful stop as a violation based on the
22 position of the vehicle relative to the limit line during
23 braking, even where the driver has in fact come to a complete
24 stop. I did not run the red signal, and I did not turn without
25 stopping.

26
27 **III. THE PROSECUTION'S BURDEN OF FOUNDATION**
28

1 Before the photographs and video generated by the automated
2 system may be considered, the prosecution must lay the statutory
3 foundation that Vehicle Code section 21455.5 requires. The
4 records in my possession do not establish that foundation, and
5 several of the procedural prerequisites appear not to have been
6 met. I set out below the deficiencies that I ask the court to
7 weigh in deciding this matter. Each is a matter on which the
8 prosecution, not the defendant, bears the burden.

9
10 **IV. THE NOTICE DOES NOT SHOW TIMELY MAILING**
11

12 Vehicle Code section 40518, subdivision (a), requires that a
13 notice to appear based on an automated enforcement violation be
14 "delivered by mail within 15 days of the alleged violation," with
15 "a certificate of mailing obtained as evidence of service." No
16 document I have received states the date of the alleged
17 violation. Without that date, compliance with the 15-day
18 requirement cannot be confirmed.

19
20 Two notices issued in this case. The first went to the registered
21 owner, Gianna Ghilarducci Kelly. After she advised that she was
22 not the driver, a second notice was directed to me. The reissued
23 notice to me could not have been mailed within 15 days of the
24 violation, because the intervening steps, mailing the first
25 notice, the owner's response, and the agency's reissuance,
26 consume far more than 15 days. I ask the court to require the
27 prosecution to produce the violation date, the date of each
28 mailing, and the certificate of mailing.

1

2 **V. THE NOTICE OMITTS REQUIRED CONTENT**

3

4 Vehicle Code section 40518, subdivision (b)(2), requires the
5 notice to describe the methods by which the recipient "may view
6 and discuss with the issuing agency, both by telephone and in
7 person, the evidence used to substantiate the violation," and to
8 provide "the contact information of the issuing agency." The
9 Final Notice I received lists only the Superior Court's telephone
10 number and website. It does not identify the issuing agency, the
11 Napa Police Department, does not give that agency's contact
12 information, and does not describe how I may view and discuss the
13 evidence with that agency.

14

15 **VI. THE NONLIABILITY AND REISSUANCE PROCESS**

16

17 Vehicle Code section 40520, subdivision (a), requires that the
18 notice contain or be accompanied by an affidavit of nonliability
19 and information about its effect. I have not been provided the
20 original notice sent to the registered owner, the affidavit, or
21 the reissued notice said to have been directed to me. I ask the
22 court to require the prosecution to establish that a notice to
23 appear was properly issued and served on me in compliance with
24 sections 40518 and 40520, and to show the basis on which I was
25 identified as the driver.

26

27 **VII. AUTOMATED SYSTEM REQUIREMENTS NOT ESTABLISHED**

28

Vehicle Code section 21455.5 conditions the validity of an automated enforcement citation on a series of requirements. Nothing in my file establishes any of them:

(a) Signage. Signs identifying the system must be posted within 200 feet of the intersection and visible to traffic approaching from every enforced direction. (Veh. Code, § 21455.5, subd. (a)(1).) No evidence shows compliant signage at the cited intersection.

(b) Warning period. The agency must have issued only warnings for the first 30 days and made a public announcement before enforcement began. (Veh. Code, § 21455.5, subd. (b).) No evidence shows compliance as to this location.

(c) Right-turn screening. The agency must follow uniform guidelines that screen right-turn-on-red violations according to the lower safety risk they pose compared to proceeding straight through a red signal. (Veh. Code, § 21455.5, subd. (c)(1).) My citation is a right-turn-on-red citation. No evidence shows that the required heightened screening was applied.

(d) Safety finding. The agency must have adopted a finding of fact that the system is needed at this specific location for safety reasons. (Veh. Code, § 21455.5, subd. (c)(2)(A).) No such finding is in my file.

(e) Inspection and calibration. The equipment must be regularly

1 inspected and certified as properly installed, calibrated, and
2 operating correctly. (Veh. Code, § 21455.5, subd. (c)(2)(B),
3 (C).) No inspection or calibration records are in my file.

4
5 (f) Sign maintenance. The warning signs must be regularly
6 inspected and maintained. (Veh. Code, § 21455.5, subd.
7 (c)(2)(D).) No records are in my file.

8
9 (g) Signal timing oversight. The agency must oversee the
10 establishment and timing of signal phases. (Veh. Code, § 21455.5,
11 subd. (c)(2)(E).) No records are in my file.

12
13 (h) Law enforcement review. Only citations reviewed and approved
14 by law enforcement may be delivered. (Veh. Code, § 21455.5, subd.
15 (c)(2)(F).) No evidence shows that a peace officer reviewed and
16 approved this particular citation.

17
18 (i) Vendor compensation. The contract with the system vendor may
19 not base payment on the number of citations or a share of
20 revenue. (Veh. Code, § 21455.5, subd. (h)(1).) The vendor
21 contract is not in my file, and its terms should be established.

22 23 **VIII. YELLOW LIGHT TIMING**

24
25 The minimum yellow light change interval at an automated
26 enforcement intersection must be set in accordance with the
27 California Manual on Uniform Traffic Control Devices. (Veh. Code,
28 § 21455.7, subd. (a).) No evidence shows that the yellow interval

1 at the cited intersection met the required minimum for the
2 approach speed.

3 4 **IX. PUBLIC HEARING**

5
6 Before authorizing the system, the City Council was required to
7 conduct a public hearing on its proposed use. (Veh. Code, §
8 21455.6, subd. (a).) No record of that hearing as it pertains to
9 this system and location is in my file.

10 11 **X. NO ALTERATION OF JUDICIAL COUNCIL FORMS**

12
13 The vendor and the operating agency may not alter the notice to
14 appear or any other form approved by the Judicial Council, and a
15 citation based on a materially altered form may be dismissed.
16 (Veh. Code, § 40518, subd. (d).) To the extent any form used in
17 this case was altered from its approved version, that is a
18 further basis for dismissal.

19 20 **XI. NAME DISCREPANCY**

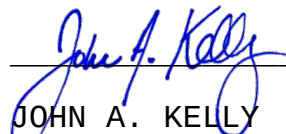
21
22 The charging documents name "John Kelly." The court's TR-205 form
23 names "John Alexander Kelly," a middle name that appears on no
24 document served on me or filed in this case. I note the
25 discrepancy to preserve the question of the records' accuracy.

26 27 **XII. CONCLUSION**

1 I did stop before turning right on the red signal. Beyond that,
2 the prosecution has not laid the foundation that Vehicle Code
3 section 21455.5 requires, and the notice process does not appear
4 to satisfy Vehicle Code sections 40518 and 40520. I respectfully
5 request that the court find me not guilty and order my bail
6 refunded. In the event of an adverse finding, I reserve my right
7 to a trial de novo under Vehicle Code section 40902, subdivision
8 (d).

9
10 I declare under penalty of perjury under the laws of the State of
11 California that the foregoing is true and correct.

12
13 Dated: June 22, 2026, at Sonoma, California.

14
15 
16

JOHN A. KELLY
Defendant In Propria Persona

NAME OF COURT: Napa Superior Court STREET ADDRESS: 1111 Third Street MAILING ADDRESS: 1111 Third Street CITY AND ZIP CODE: Napa, 94559	FOR COURT USE ONLY FILED JUL 09 2026 Clerk of the Napa Superior Court By: Deputy
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: John Alexander Kelly	
DECISION AND NOTICE OF DECISION (Trial by Written Declaration – Vehicle Code, § 40902)	
CITATION NUMBER: NQ1014371 CASE NUMBER: 26TR005843	

1. The court's decision was entered on: 6-30-2026
2. Bail amount: \$301.00
3. **THE COURT FINDS** the defendant:

a. Violation #1 VC21453(B)	☒	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
b. Violation #2	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
c. Violation #3	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$
d. Violation #4	☐	Not Guilty	☐	Guilty Fine: \$	☐	Dismiss Fee: \$

THE COURT ORDERS

4. ☐ Defendant shall pay the following amount:
- | | |
|-------------------------------------|----|
| a. Total fines: | \$ |
| b. Total fees: | \$ |
| c. Total fines and fees (a plus b): | \$ |
| d. Credit for bail ordered applied: | \$ |
| e. TOTAL AMOUNT OWED (c minus d): | \$ |
- TO BE PAID BY:
5. ☒ Clerk shall refund to defendant the following amount:
- | | |
|--|---|
| a. Bail Amount: | \$ 301.00 |
| b. Subtraction of total fines (if any): | \$ 0 |
| c. Subtraction of total fees (if any): | \$ 0 |
| d. Total fines and fees to be subtracted (b plus c): | \$ 0 |
| e. TOTAL AMOUNT ORDERED REFUNDED (a minus d): | \$ 301.00 (should be received by mail within 60 days) |
6. Other orders (specify)

Date: 6-30-2026

JUDICIAL OFFICER

IF YOU WISH TO REQUEST A NEW TRIAL, YOU MUST SUBMIT A REQUEST FOR NEW TRIAL (TRIAL DE NOVO (FORM TR-220) WITHIN 20 DAYS OF THE DATE STATED IN ITEM 2 OF THE CLERK'S CERTIFICATE OF MAILING (see reverse).

FOR USE BY COURT CLERK: ☐ The evidence submitted by defendant is enclosed.

PEOPLE v. John Alexander Kelly

CASE NUMBER: 26TR005843

CLERK'S CERTIFICATE OF MAILING

1. I am not a party to this action.
2. I caused the *Decision and Notice of Decision* to be served by enclosing a copy in an envelope addressed as shown below and caused the envelope to be deposited with the United States Postal Service with first-class postage fully prepaid.

at Napa, California, on

JUL 09 2026

3. I certify that the foregoing is true and correct.

Dated:

Robert E Fleschman, Clerk by:

JUL 09 2026



, Deputy

DEFENDANT

John Alexander Kelly
617 Broadway
Unit 1637
Sonoma CA 95476

AGENCY

Gonzalez, David
Napa Police Department

☒ People's Exhibits Returned